

CHAPTER 16.

An Act to make provision for the medical treatment of children attending Elementary Schools in Ireland, and for other matters incidental thereto. [29th May 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) It shall be the duty of a local authority, in the prescribed manner and subject to the prescribed conditions, to—

Provision of medical treatment, &c., for school children by local authorities.

- (a) provide for the medical inspection of children immediately before or at the time of or as soon as possible after their admission to an elementary school within the area of the local authority, and on such other occasions as may be prescribed ;
- (b) make arrangements for attending to the health and physical condition of children attending any such school ; and
- (c) so far as appears to them to be necessary or expedient for the purposes aforesaid, encourage and assist the establishment or continuance of voluntary agencies, and associate with themselves representatives of such agencies.

(2) In exercising their powers under this section a local authority shall act in accordance with regulations made by the Local Government Board and approved by the Treasury and the Commissioners of National Education in Ireland.

(3) Nothing in this Act shall be construed as imposing any obligation on a parent to submit his child to medical inspection or treatment, or as authorising a local authority to establish a general domiciliary service of treatment of children by medical practitioners.

(4) The council of each county and county borough shall be the local authority for the purposes of this Act :

Provided that, on the joint application of the council of any county and the council of any urban district therein having a population of not less than six thousand, the Local Government Board may by order direct that the council of the urban district shall be the local authority for that district, and thereupon the council of the urban district shall be the local authority for that district instead of the county council so long as the order continues in force.

(5) If the Local Government Board are satisfied, after such inquiry as they deem necessary, that the local authority has failed to perform all or any of the duties imposed on them by this Act, the Board may by order appoint some person or

persons to discharge the duties of the local authority, or such of those duties as may be specified in the order.

(6) Without prejudice to any other powers for enforcing the provisions of this Act from and after the making of any such order, and so long as it remains in force, the powers and duties of the local authority in relation to the said duties, or such of them as have not been performed by the local authority, shall be exercised and performed by the person or persons thereby appointed instead of by the local authority, and the remuneration and expenses of such person or persons as fixed by the Board shall be a debt due by the council to the Board, and shall be paid out of such rate or fund as the Board may determine.

(7) Any expenses incurred by a local authority in the execution of this Act, so far as not otherwise provided for, shall in the case of a county borough council or urban district council be paid as part of the expenses of the council under the Public Health (Ireland) Acts, 1878 to 1918, and in the case of a county council be paid out of the county fund and raised by means of the poor rate equally over the area for which the county council is the local authority. An amount not exceeding one half of the expenses certified by the Local Government Board to have been properly incurred by a local authority in the execution of this Act shall be paid to the local authority out of moneys provided by Parliament.

Interpretation,
short title, and
construction.

2.—(1) In this Act—

The expression “prescribed” means prescribed by regulations made under this Act;

The expression “parent” includes guardian and every person who is liable to maintain, or has the actual custody of, any child; and

The expression “elementary school” means—

(a) any national school; and

(b) any school recognised by the Local Government Board as providing efficient elementary education.

(2) This Act may be cited as the Public Health (Medical Treatment of Children) (Ireland) Act, 1919, and shall be construed as one with the Public Health (Ireland) Acts, 1878 to 1918, and may be cited with those Acts as the Public Health (Ireland) Acts, 1878 to 1919.